

TENTATIVE RULING

Case: **Rae v. State of California et al.**
Case No. CV2023-2113

Hearing Date: **March 13, 2026** **Department Eight** **9:00 a.m.**

Motion for relief:

The Court rules on plaintiff Matthew Rae's motion for order granting plaintiff relief as follows:

- The motion for relief as to the Court's August 20, 2024, Order, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The motion as to this Order is untimely. (*Ibid.*)
- The motion for relief as to the Judgment of Dismissal entered on October 24, 2025, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) Plaintiff fails to show that the entry of the Judgment of Dismissal was the result of his mistake, inadvertence, surprise or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921 – 922; see generally Rae Decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for joinder:

Plaintiff Matthew Rae's motion for compulsory joinder and leave to amend is **DENIED**. (Code Civ. Proc., §§ 389, 472a, 473, 576.) Given the Judgment of Dismissal entered on October 24, 2025, and the Court's ruling on plaintiff's motion for relief, the Court lacks subject matter jurisdiction to determine this motion. (See *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1008.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sierra Northern Railway v. State of California, by and through the Department of Water Resources et al.**
Case No. CV2022-0479

Hearing Date: **March 13, 2026** **Department Eleven** **9:00 a.m.**

Defendants' motion for summary judgment, or alternatively, summary adjudication:

Defendants State of California, acting by and through the Department of Water Resources ("DWR"), Central Valley Flood Protection Board ("CVFPB"), and Sacramento and San Joaquin Drainage District's ("SJDD") (collectively, "State defendants") filed an untimely reply brief and supporting documents. (Code Civ. Proc., § 437c, subd. (b)(4) [a reply to the opposition must be served and filed "not less than 11 days preceding the hearing"]; see also *Steele v. Bartlett* (1941) 18 Cal.2d 573, 574.) Despite being untimely, the Court will consider State defendants' reply. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Plaintiff Sierra Northern Railway's ("Sierra Northern") request for judicial notice of exhibits E, G, P, R, T, X, AA, and HH is **GRANTED**. (Evid. Code, §§ 451, subd. (a).) Sierra Northern's request for judicial notice of exhibits A, B, F, H, J, K, L, N, O, Q, S, U, V, W, Y, Z, BB, DD, EE, FF, GG, II, JJ, and LL is **DENIED**. (Evid. Code, §§ 452, subd. (c), (d), (h), 453.) The proffered documents are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule on Sierra Northern's objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court declines to rule on State defendants' objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

State defendants' motion for summary adjudication as to the first and second causes of action (quiet title and declaratory relief) is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(2).) The Court finds that State defendants have not met their burden of showing that:

(1) Sierra Northern fails to state a cause of action for quiet title or declaratory relief. (Code Civ. Proc., § 761.020.) The necessary elements for a quiet title cause of action are: (1) a description of the property; (2) the plaintiff's title or interest and the basis; (3) the defendant is asserting an adverse claim or antagonistic property interest; (4) the date as of which the determination is sought; and (5) a prayer for determination of title. (*Ibid.*) The Court finds that Sierra Northern's complaint contains all allegations required for a quiet title cause of action. (Complaint ¶¶ 40-45.) The Court further finds that State defendants' answer admits and establishes that it has a claim that is adverse to Sierra Northern's property interest. (*Pinewood Investors v. City of Oxnard* (1982) 133 Cal.App.3d 1030,